

26PR00083 Estate of Charles R. Dion

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-07-29

Motion: Petition for Probate and Letters Testamentary

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00083>

Source SHA-256: a5765dccb5fec006f0590165011968f2ac044396479ea4a5aac8e65dec2bea12

Tentative Ruling: Estate of Charles R. Dion

Case Number

26PR00083

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 07/29/2026 - 09:30

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Evidentiary Hearing Required. On February 19, 2026, Scott Christian Dion filed a Petition for Probate of Will and Letters Testamentary. On May 19, 2026, Gloria Foster filed a written objection to Mr. Dion's petition. On June 1, 2026, Ms. Foster also filed a competing petition for Probate of Will and Letters Testamentary, offering a subsequently executed will for probate, which contradicts dispositive provisions of the will offered by Scott Christian Dion. That petition was amended on June 4, 2026. The objection and competing petition place this matter at issue, requiring evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

Petition for Letters of Special Administration. On July 21, 2026, Gloria Foster filed a Petition for letters of Special Administration. The Petition did not request general powers, which means it can be heard at the same time as this hearing. A request to shorten time on the hearing of this petition should be granted.

Judges

Judge Denise M. Hippach

SM Dept 1

312-M East Cook St. Building E

Santa Maria, CA 93454-5165

US